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LINE 13

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S MOTION FOR AN ORDER COMPELLING ARBITRATION AND STAYING THIS LITIGATION

TENTATIVE RULING:

Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP ("Jacoby & Myers") Motion for an Order Compelling Arbitration and Staying the Litigation is GRANTED.

Defendant Jacoby & Meyers seeks to compel the claims asserted against it by Plaintiff Joyce Turchetti to binding arbitration, based on a purported agreement to arbitrate located in the retainer agreement entered into by the parties on August 12, 2024.

Agreements to arbitrate are valid, irrevocable, and enforceable. (Code Civ. Proc., § 1281.) When litigating parties have agreed to arbitrate a dispute, either party may petition or move for an order compelling the dispute to arbitration and staying judicial proceedings. California public policy favors arbitration and the enforcement of agreements to arbitrate according to their terms. (See *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

"[T]he threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 861, quoting *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) "This threshold inquiry stems from the basic premise that arbitration is consensual in nature. Thus, while California public policy favors arbitration, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate." (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 943 [quotation marks omitted].)

A petition to compel arbitration shall be summarily heard in the manner provided by law for the making and hearing of motions. (Code of Civ. Proc., § 1290.2.) Arbitration will be ordered as long as the court finds an agreement to arbitrate exists, absent limited exceptions. (*Id.*, at § 1281.2.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Here, Jacoby & Meyers carries that burden: it submits evidence showing that Turchetti and "the law firms of Jacoby & Meyers Attorney LLP" entered into a retainer agreement that included an agreement to arbitrate "[a]ny dispute between the parties to this Agreement regarding the construction, application or performance of any services under this Agreement, and any claim

arising out of or relating to this Agreement or its breach, including, without limitation, claims for breach of contract, professional negligence, breach of fiduciary duty, misrepresentation, fraud and disputes regarding Attorney fees and/or costs charged under this Agreement.” (May 4, 2026 Motion, p. 17; see also *id.*, at p. 10, ¶ 2 [agreement was entered into by the parties].) The claims set forth in the First Amended Complaint fall within the scope of this agreement, and the First Amended Complaint further attaches an excerpt from the same retainer agreement containing the provision for arbitration. (See Mar. 9, 2026 First Amended Complaint, pp. 3–11.)

Turchetti has not opposed the motion, and it does not appear that Jacoby & Meyers has waived the right to compel arbitration nor that grounds for rescission of the agreement exist. (See Code Civ. Proc., § 1281.2, subds. (a), (b).)

The motion is therefore GRANTED, and the case is stayed pending the completion of arbitration. (See Code Civ. Proc., § 1281.4.) The case management conference on September 29, 2026 at 9:30 a.m. is VACATED as a result of the stay. The Court sets a case management conference for February 23, 2027 at 9:30 a.m. in Department 4 with a joint case management conference statement due five court days before the conference. If the parties want to advance or continue the conference, they should jointly email Department 4 with alternative dates.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court’s signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 14

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S DEMURRER TO PLAINTIFF JOYCE TURCHETTI'S
FIRST AMENDED COMPLAINT

TENTATIVE RULING:

In light of the court's tentative ruling on the motion to compel arbitration and stay, the court declines to rule on the motion for lack of jurisdiction.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.
